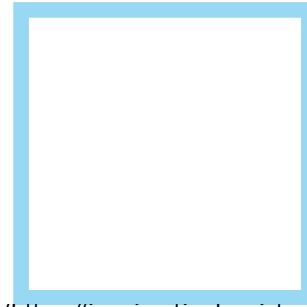


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START-UP VISA



LATEST NEWS: UK Asylum Reforms 2025: Restoring Order and Control? (<https://immigrationbarrister.co.uk/uk-asylum-reforms-what-to-expect-from-the-new-uk-asylum-reforms-2025/>)

LOCATION: HOME (<https://immigrationbarrister.co.uk/>) » ...

START-UP VISA

Since 13 July 2023, the Start-up Visa route has been closed to new applications. Start-up entrepreneurs who are looking to establish a business in the UK and who have not yet been endorsed may qualify for an Innovator Founder Visa (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/innovator-founder-visa/>) instead. If you are interested in setting up a new business in the UK, or you own an existing UK business, you may also be eligible for a Skilled Worker visa via self-sponsorship (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/self-sponsorship-skilled-worker-visa/>), that is by being sponsored by your own UK company.

The UK Start-up visa is for individuals who are new entrepreneurs and want to establish a business in the UK for the first time. You do not need to be a graduate or have secured any initial funding. However, you will need to have an innovative, viable and scalable business idea which has been approved by an endorsing body.

Start-up visas are one-off visas, valid for 2 years and the category does not lead directly to settlement in the UK. However, Start-up visa holders may extend their stay in the Innovator visa (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/innovator-visa/>) category and qualify for ILR three years later. Start-up visa applicants can bring their partner and any children under the age of 18 to the UK.

Download our Start-up & (<https://immigrationbarrister.co.uk/content/uploads/2020/12/Start-up-Innovator-Visa-Brochure-Richmond-Chambers.pdf>)

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(<https://www.google.co.uk>

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To discuss your UK Start-up visa application with one of our business immigration barristers, contact our Start-up visa lawyers on 0203 617 9173 or complete our enquiry form below.

Investment funds requirement for a Start-up visa

Start-up visa applicants do not need any funds to invest in their business. However, the requirement to have a 'viable' and 'scalable' business idea means that, in practice, you may need to have funds available to invest. Some endorsing bodies require a certain level of funding as a condition of endorsement.

Endorsement criteria for a UK Start-up visa

In order for your business proposal to be endorsed, an approved endorsing body will need to be satisfied that your business idea meets all of the following criteria:

- **Innovation:** You have a genuine, original business plan that meets new or existing market needs and/or creates a competitive advantage;
- **Viability:** You have, or are actively developing, the necessary skills, knowledge, experience and market awareness to successfully run the business;
- **Scalability:** Your business plan has potential for job creation and growth into national markets.

The endorsing body will also need to be satisfied that you will spend the majority of your working time in the UK on developing business ventures.

List of approved Start-up visa endorsing bodies

The Home Office has published a **list of endorsing bodies for Start-up visa applications** (<https://www.gov.uk/government/publications/endorsing-bodies-start-up/start-up>). This list of endorsing bodies contains the names of all currently approved Start-up visa endorsing bodies, as well as links to their websites and, where available, details of their application process and endorsement criteria.

Obtaining a Start-up visa endorsement

Our immigration barristers assist entrepreneurs from around the world to prepare successful Start-up visa applications. We can also assist applicants to secure Start-up visa endorsement. Richmond Chambers is a trusted introducer to several endorsing bodies, ensuring eligible clients direct contact with investment panel members as well as transparent and timely decision-making.

- **A Guide to the UK Start-up Visa** (<https://immigrationbarrister.co.uk/a-guide-to-the-uk-start-up-visa/>) (https://www.google.co.uk/search?q=richmond+chambers+in)
- **Requirements for the new Innovator & Start-Up Visas** (<https://immigrationbarrister.co.uk/requirements-for-the-new-innovator-start-up-visas/>)
- **How to switch from a Tier 1 Graduate Entrepreneur to a Start-up Visa** (<https://immigrationbarrister.co.uk/how-to-switch-from-a-tier-1-graduate-entrepreneur-to-a-start-up-visa/>)

Switching into the Start-up visa category

Applications for Start-up visas can be made from outside the UK, but it is also possible to switch into the Start-up visa category from within the UK provided you do not have, or were not last granted, permission as a Visitor, Short-term Student, Parent of a Child Student, Seasonal Worker, Domestic Worker in a Private Household or outside the Immigration Rules.

Joining an existing business

The Start-up visa category is for people seeking to establish a new business in the UK for the first time. If you are looking to join an existing business then the Start-up visa category is not an appropriate immigration route.

Applying for a Start-up visa as part of a team

You do not need to be the sole founder of your business and may be a member of a Start-up team. This means that you may share the same business idea and plan as another Start-up team member. However, each applicant must receive their own individual endorsement from an approved endorsing body.

Start-up visa endorsement letter

If your application to be endorsed by a Start-up visa endorsing body is approved, you will be issued with a Start-up visa endorsement letter. This letter must be submitted as part of your Start-up visa application. The Immigration Rules contain strict requirements in terms of the information that must be included in a Start-up visa endorsement letter. Advice from an immigration lawyer will ensure that your endorsement letter satisfies the requirements of the rules.

Visa validity period

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Your initial Start-up visa will be valid for 2 years, unless you were previously granted leave as a Tier 1 Graduate Entrepreneur, in which case you will be granted leave for a period that will take you to the maximum 2-year limit.

(<https://www.google.co.uk>)

Extending a Start-up visa and applying for ILR

It is not possible to extend a Start-up visa and Start-up visa holders are not eligible for settlement. However, at the end of 2 years you will be able to apply for further leave to remain in the **Innovator category** (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/innovator-visa/>) in order to continue developing your business. The Innovator category can lead to settlement after a further 3 years.

- **Conditions of stay as a Start-up / Innovator**
(<https://immigrationbarrister.co.uk/conditions-of-stay-as-a-start-up-innovator/>)

What else do I need to know?

As a Start-up visa holder you will not be required to spend any particular amount of time in the UK and you will be permitted to undertake employment other than working for the business or businesses that you have established.

However, you will need to stay in contact with your endorsing body with checkpoints at 6 and 12 months. The endorsing body will need to be satisfied that you are continuing to work on your business venture and have demonstrated reasonable progress in relation to either your original or a new business idea. Your endorsement may be withdrawn and your leave curtailed if this is not the case. You will also need to abide by various other **conditions of stay** (<https://immigrationbarrister.co.uk/conditions-of-stay-as-a-start-up-innovator/>).

Your partner and any children under the age of 18 may accompany or join you as your dependant(s).

How our immigration barristers can help

Richmond Chambers is widely recognised as one of the UK's leading immigration practices for Start-up businesses. The work of our immigration barristers on behalf of startups has been recognised through membership of the Investment Migration Council and the Department of International Trade's Investor Support Network.

Our team of immigration barristers has experience in assisting all types of start-up businesses. Once your business idea has been endorsed by an approved endorsing body, our barristers will guide you through the complex **Home Office rules** (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-w-immigration-rules-for-workers>) and policies to ensure a successful Start-up visa application.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to startups as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Drafting a Start-up visa compliant business plan



Credibility assessment interview preparation for Start-up visa applicants



Applications for extension of stay as an Innovator



Applications for settlement as an Innovator



Fresh applications, Administrative reviews and Judicial reviews for Start-up visa applicants



WHAT CAN WE HELP YOU WITH?

To discuss your UK Start-up visa application with one of our immigration barristers, contact our Start-up visa team on 0203 617 9173 or complete our enquiry form below.

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A Guide to the UK Start-up Visa

(<https://immigrationbarrister.co.uk/a-guide-to-the-uk-start-up-visa/>)

By Richmond Chambers -

10 Oct 2022

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(/ In my previous blog post, I broke down the 'General Requirements' for coming to the UK or switching inside the UK to the Start-up visa or Innovator visa. In this post, I will outline the 'Specific Requirements'...

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Conditions of stay as a Start-up / Innovator

(<https://immigrationbarrister.co.uk/conditions-of-stay-as-a-start-up-innovator/>)

By Gillian McCall - Barrister Partner

02 Oct 2022

It is important for anyone coming to or remaining in the UK as a Start-up or Innovator to understand what conditions will be attached to their leave, as the consequences of breaching these conditions can be...

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List of Endorsing Bodies for Innovator and Startup Visas

(<https://immigrationbarrister.co.uk/list-of-innovator-visa-endorsing-bodies/>)

By Richmond Chambers -

29 May 2022

In our previous posts, we broke down the general and specific requirements for Start-up and Innovator visas. We pointed out that whichever of the routes you follow, your business will need to be endorsed by...

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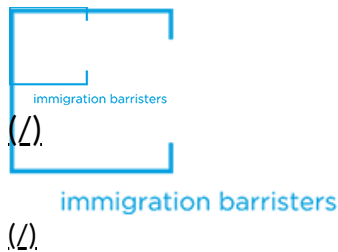
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